

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

PINKY WESLEY,

Plaintiff,

v.

TOYOTA MOTOR SALES, U.S.A., INC.,

Defendant.

Case No.: CIVSB2404407

**[TENTATIVE] ORDER DENYING
DEMURRER TO THE SOLE
CAUSE OF ACTION IN THE
FIRST AMENDED COMPLAINT,
FILED BY DEFENDANT TOYOTA
MOTOR SALES, U.S.A., INC.**

I. INTRODUCTION

On February 1, 2024, Plaintiff Pinky Wesley filed a Complaint against Defendant Toyota Motor Sales, U.S.A., Inc. The operative First Amended Complaint, filed June 8, 2026, alleges one causes of action for violation of the Magnuson-Moss Warranty Act (MMWA).

Plaintiff alleges that he purchased a 2018 Toyota Camry from Defendant on February 3, 2021, and entered into a warranty contract with Defendant. (FAC ¶ 6.) Plaintiff attached the warranty contract to the FAC as Exhibit A. Plaintiff alleges that defects with the vehicle manifested themselves, and Defendant failed to repurchase or replace the vehicle. (FAC ¶¶ 10-14.)

Now before the Court is Defendant's demurrer to the first cause of action. Plaintiff opposes the demurrer.¹ After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.²

II. WHY THE MOTION SHOULD BE DENIED

The Magnuson-Moss Warranty Act (MMWA) "authorizes a civil suit by a consumer to enforce the terms of an implied or express warranty." (*Daughterty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 833.) Under the MMWA, "a consumer who is damaged by the failure of a supplier, warrantor, or service contractor to comply with any obligation under this title [15 USCS §§ 2301 *et seq.*], or under a written warranty, implied warranty, or service contract, may bring suit for damages and other legal and equitable relief." (15 U.S.C. § 2310(d)(1).)

The MMWA provides that a warrantor may establish an informal dispute settlement procedure that meets specific legal requirements. (15 U.S.C. § 2310(a)(3).) If the warrantor does so and incorporates in a written warranty a requirement that the consumer resort to such procedure before pursuing any legal remedy under the MMWA, then the consumer may not commence a civil action unless such he or she resorts to such a procedure. (15 U.S.C. § 2310(a)(1-3).)

¹ The parties also submitted erroneous or inapplicable pleadings which have not been considered. These included (1) Defendant's reply in support of the motion (filing date August 4, 2026); the reply is directed to a "sixth cause of action in the Complaint," which is not alleged or at issue; (2) Plaintiff's filing of an opposition to a purported defense motion to strike (filing date July 20, 2026); Defendant did not file a motion to strike; and (3) Defendant's reply to the opposition to the purported motion to strike (filing date August 4, 2026); this reply in support of a non-existent motion (which purported had been filed by the same party filing the reply) references punitive damages and the Song-Beverly Act, neither of which are mentioned in the FAC. The Court admonishes counsel to avoid errors of this kind in the future.

² The Court finds that the moving party has complied with its meet-and-confer obligation.

Alternatively, if section 2310(a)(3) does not apply because the warranty does not require an informal dispute settlement procedure, then no action can be brought “unless the person obligated under the warranty or service contract is afforded a reasonable opportunity to cure” the defect. (15 U.S.C. § 2310(e).)

Under the MMWA, Plaintiff therefore cannot bring his action unless: (1) he follows the warranty’s informal dispute settlement procedures, if the warranty establishes such a requirement; or (2) he gives Defendant a reasonable opportunity to cure the defect, if the warranty does not establish informal dispute settlement procedures. While a Complaint may allege facts in the alternative, *i.e.*, that the warranty establishes or does not establish a mandatory dispute settlement procedure, Plaintiff must allege at least one of the two prerequisites.

Defendant argues that Plaintiff has not alleged that he gave Defendant a reasonable opportunity to cure the breach. It also argues that Plaintiff does not allege that he exhausted the dispute resolution procedure. (Mtn. at p. 4-5.) Plaintiff responds that he did allege that Defendant had a reasonable number of opportunities to repair, and the dispute resolution program was not mandatory because the warranty does not clearly state on its first page that the program was required. (Opp. at p. 5-6, citing 16 C.F.R. § 703.1(h)(2).)

The warranty agreement attached as Exhibit A to the FAC states that Toyota offers informal dispute resolution through the Dispute Settlement Program administered by the National Center for Dispute Settlement. (FAC Ex. A at p. 5.) The warranty agreement advises, “Failure to use the CDSP may affect your rights and remedies under California’s ‘Lemon Laws.’” (*Id.* at p. 6.) The warranty later states: “Important: You must use the Dispute Settlement Program (or, in California, the CDSP) before seeking remedies through a court action pursuant to the Magnuson-Moss Warranty Act.” (*Id.* at 10.)

The FAC alleges: “Plaintiff has also met all of Plaintiff’s obligations and preconditions to bring this claim, or alternatively it would have been futile for Plaintiff to do so.” (FAC ¶ 30.) The FAC further alleges: “Plaintiff has met all of Plaintiff’s obligations for bringing this claim as provided in the written warranties, or alternatively, Defendant does not maintain an informal dispute resolution process” (FAC ¶ 31.)

Plaintiff argues that the dispute resolution program was not mandatory because the warranty contains procedural deficiencies under 16 C.F.R. § 703.1(h)(2), including the failure to state the program was required on the first page. Therefore, Plaintiff argues, it was not a prerequisite for bringing suit.

Even if the warranty does not require the informal dispute resolution program, under the MMWA, Plaintiff must allege that he gave Defendant a reasonable opportunity to repair. (See 15 U.S.C. § 2310(e); *Rojas v. Bosch Solar Energy Corp.* (N.D. Cal. 2019) 386 F. Supp. 3d 1116, 1128 [holding that an MMWA claim is subject to dismissal for failing to allege pre-suit notice and an opportunity to cure].)

Here, Plaintiff alleges that “Defendant had an affirmative duty to promptly offer to repurchase or replace the Subject Vehicle at the time i[t] failed to conform the Subject Vehicle to the terms of the express warranty after a reasonable number of repair attempts.” (FAC ¶ 13.) Defendant does not explain why paragraph thirteen’s allegation regarding Defendant having been given a reasonable number of repair attempts to conform the vehicle to the warranty is insufficient to meet this pleading requirement. The Court finds that it satisfies the pleading requirement and that this motion should be denied as a result.

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III. CONCLUSION

Defendant's demurrer to the first cause of action is DENIED.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

Tentative -- NOT FINAL